

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

JOINT STATUS REPORT AND PROPOSED SCHEDULE

TO THE HONORABLE COMMISSION:

Pursuant to the Order on Complainant's Urgent Motion and Respondent's Motion to Stay issued by this Honorable Commission on January 3, 2020, the Parties submit this Joint Status Report and Proposed Schedule.

1. On May 1st, 2020 the First Circuit issued the attached decision on a motion to dismiss in *Dantzler, Inc., et. als. v. Puerto Rico Ports Auth., et.als.*, 18-2089 (1st Cir.), in which it vacated and remanded the District Court's decision and dismissed the complaint on Constitutional Standing grounds. Exhibit I.
2. On May 12, 2020, the Court of Appeals granted the appellees until May 29, 2020 to file a Petition for Rehearing. Exhibit II.
3. In light of the above, the parties jointly request that the proceedings of the referenced matter continued to be stayed until the decision in *Dantzler* becomes firm and final.

4. Within fifteen days of the decision in *Dantzler* becoming firm and final, the parties will file a joint status report with a proposed schedule.

WHEREFORE the parties respectfully request that the FMC take notice of the above and issue an order accordingly.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 18th day of May, 2020.

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CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

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